

TENTATIVE RULINGS FOR June 26, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

RODNEY GLENN WILLIAMS JR and DEIUNDRA TESHAWN COX
v.
GENERAL MOTORS LLC
CIVVS2400422

Motion(s): Summary Judgment, or in the alternative, Adjudication
Movant(s): Defendant General Motors LLC
Respondent(s): Plaintiffs Rodney Glenn Williams Jr. and Deiundra Teshawn Fox

PROCEDURAL/FACTUAL BACKGROUND

On August 27, 2024, Plaintiffs Rodney Glenn Williams Jr. and Deiundra Teshawn Cox filed this lemon law action against Defendant General Motors LLC alleging the following four causes of action: 1) Violation of Subdivision (D) of Civil Code section 1793.2, 2) Violation of Subdivision (B) of Civil Code section 1793.2, 3) Violation of Subdivision (A)(3) of Civil Code section 1793.2, and 4) Breach of the Implied Warranty of Merchantability.

Plaintiffs allege that on September 18, 2019, they entered into a warranty contract with GM regarding a 2016 Chevrolet Impala. They allege defects and nonconformities manifested during the warranty period, but GM did not replace or make restitution and failed to repair the vehicle after a reasonable number of attempts.

On February 24, 2026, GM filed this Motion for Summary Judgment, or in the alternative, Adjudication. GM concurrently filed a separate statement of undisputed material facts, the declarations of Kyle Roybal and Bryan Jensen, and documentary evidence in support.

On May 11, 2026, Plaintiffs filed an Opposition and an opposing separate statement.

On May 13, 2026, GM filed a Reply.

On June 5, 2026, Plaintiffs filed a second Opposition, a second opposing separate statement, and the declaration of Deiundra Teshawn Cox.¹

Discussion

Statement of the Law. “The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*)). Summary judgment is proper where there is no triable issue as to any material fact and the movant is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

The analysis requires the trial court to engage in three steps: “First, we identify the issues framed by the pleadings since it is these allegations to which the motion must respond by establishing a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent’s pleading. [Citations.] [¶] Secondly, we determine whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in movant’s favor. [Citations.] The motion must stand self-sufficient and cannot succeed because the opposition is weak. [Citations.] A party cannot succeed without disproving even those claims on which the opponent would have the burden of proof at trial. [Citations.] [¶] When a summary judgment motion *prima facie* justifies a judgment, the third and final step is to determine whether the opposition demonstrates the existence of a triable, material factual issue.” (*AARTS Productions, Inc. v. Crocker Nat’l Bank* (1986) 179 Cal.App.3d 1061, 1064-65.)

When the moving party is a plaintiff, the initial burden is met by a showing that there is no defense to the action or rather by proving each element of the cause or causes of action. (See Code Civ. Proc., § 437c, subd. (p)(1).) Likewise, defendants can meet their initial burden by showing that a cause or causes of action have no merit because one or more elements of the claims “cannot be established.” (See Code Civ. Proc., § 437c subd. (p)(2).) Once the movant has met the initial burden, the burden then shifts to the opposing party to produce admissible evidence showing that there is a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at pp. 849-851.) However, if the movant does not satisfy the initial burden, the motion must be denied and it is unnecessary for the court to consider the opposition. (*Swanson v. Morongo Unif. Sch. Dist.* (2014) 232 Cal.App.4th 954, 963.)

The party opposing an MSJ must provide proof showing a triable issue of fact; equivocal evidence will not suffice. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 10:203 (“Weil & Brown”), citing *Ahrens v. Sup. Ct. (Pac. Gas & Elec. Co.* (1988) 197 Cal.App.3d 1134, 1152.) Declarations and evidence offered in opposition to a motion for summary judgment must be liberally construed, while the moving party’s evidence must be construed strictly. The opposing party cannot controvert the moving party’s declarations by evidence “based on speculation, imagination, guess work, or mere possibilities.” (Weil & Brown, *supra*, § 10:203.1,

¹ This second Opposition differs significantly from the first and was filed a significant time after the Reply. This is, essentially, an unauthorized Sur-Reply, which the Court will not consider. The Court notes that Plaintiffs, for the first time in this unauthorized Sur-Reply, raise several new defects, submit new evidence, new objections, and ask for leave to amend to add new claims under the Magnuson-Moss Warranty Act. Plaintiffs offer no explanation for why they filed this second Opposition with new evidence and make no explanation for why they now for the first time raise issues as to new defects or explain their delay in seeking leave.

citing *Doe v. Salesian Soc.* (2008) 159 Cal.App.4th 474, 481.) Opposing declarations, while liberally construed, cannot contain inadmissible evidence, either hearsay or conclusions. (*Overland Plumbing, Inc. v. Transamerica Ins. Co.* (1981) 119 Cal.App.3d 476, 483.) Any evidentiary objections not made are deemed waived. The Court, additionally, must consider reasonable inferences drawn from the presented evidence. (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th at p. 843.)

The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (Code Civ. Proc., § 437c, subd. (p)(2).) The opposing party’s failure to file counter-declarations or opposition does not relieve the moving party of the above burden, *i.e.*, it is still the moving party’s burden to prove he is entitled to judgment. (*Villa v. McFerren* (1995) 35 Cal.App.4th 733, 743-45; *FSR Brokerage, Inc. v. Sup. Ct.* (1995) 35 Cal.App.4th 69, 73-75, fn. 4.) The court’s sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.) The judge must determine from the evidence submitted whether there is a triable issue as to *any* material fact. (*Id.* at p. 926.) If there is a single such issue, the motion must be denied. (*Joseph Schlitz Brewing Co. v. Downey Distributor* (1980) 109 Cal.App.3d 908, 914.)

A party may also move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims of damages, or one or more issues of duty. (Code Civ. Proc. §437(f).) A summary adjudication motion may be made by itself, or as an alternative to a summary judgment motion, and is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

Analysis. GM argues it is entitled to summary judgment on the first through fourth causes of action because Plaintiff Deiundra Teshawn Cox did not buy the Subject Vehicle new and purchased it with more than 50,000 miles. Plaintiff, according to GM, did not receive any new or additional warranty with the Subject Vehicle and only received the remaining balance as a matter of law under *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189. Further, GM argues that Plaintiff Rodney Glenn Williams Jr. has no proof he ever bought or leased the Subject Vehicle and therefore lacks standing as a buyer/lessee under the Act.

GM’s Undisputed Material Facts (UMF). The Subject Vehicle is a 2016 Chevrolet Impala, which Plaintiff Deiundra Teshawn Cox purchased on September 18, 2019, from CarMax Auto Superstores California, LLC (CarMax). (UMF 1, disputed in part [only with respect to purchase date as September 6, 2019].) The Retail Installment Sale Contract shows Deiundra Teshawn Cox as the Buyer of the Subject Vehicle. Rodney Glenn Williams Jr. is not identified as either a “Buyer” or “Co- Buyer”. (UMF 2, disputed.) Plaintiff did not buy the Impala new; she bought it used, with more than 50,000 miles on the odometer. (UMF 3, undisputed.) GM was not a party to this transaction, and CarMax is not a GM authorized dealership. GM was not a party to any sale or lease of the Subject Vehicle to Rodney Glenn Williams Jr. (UMF 4, disputed.) Plaintiff was not the Impala’s original owner(s). Ed Morse Sawgrass Auto Mall in Sunrise, Florida delivered the Subject Vehicle to the original owner(s) on June 24, 2016, with 9 miles on the odometer. (UMF 5, undisputed.) With that transaction delivery to the Impala’s original owner(s), GM issued a New Vehicle Limited Warranty (the Warranty) providing bumper-to-bumper coverage for the earlier of 3 years or 36,000 miles and powertrain coverage for the earlier of 5 years or 60,000 miles. (UMF 6, undisputed.) GM did not issue or provide any new or additional warranty coverage to Plaintiff or the vehicle when Plaintiff bought the Impala used.

Plaintiff received only the balance of any coverage remaining under the Warranty that GM issued when the Impala was delivered to its original owner(s) in June 2016. (UMF 7, disputed.)²

Plaintiff Rodney Glenn Williams, Jr. 's Standing. The Song-Beverly Act defines “buyer” or “retail buyer” as meaning “any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail. As used in this subdivision, “person” means any individual, partnership, corporation, limited liability company, association, or other legal entity that engages in any of these businesses.” (Civ. Code, § 1791, subd. (b).) The Act further defines “retail seller”, “seller”, or “retailer” as “any individual, partnership, corporation, association, or other legal relationship that engages in the business of selling or leasing consumer goods to retail buyers.” (Civ. Code, § 1791, subd. (l).) GM argues that the plain language of the statute demonstrates the Act’s protections are meant only to extend to purchases or leases made through ordinary retail channels.

For example, courts have found that the Act may not cover private transactions. “The nature of the transfer is crucial. Where the seller is a retail seller engaged in the business of vehicle selling, the Act contemplates coverage. Where the sellers are private parties who are not routinely engaged in such a “retail” business, the fact that a plaintiff bought a vehicle with its remaining written warranty rights is not alone dispositive under the Act.” (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 923.)

Towns v. Hyundai Motor America (2025) 117 Cal.App.5th 958 (*Towns*) is informative on this point of standing to sue under the Act. It held that a person who is not a “buyer” lacks standing and there found that the purchaser’s wife for whom the vehicle was purchased and who was responsible for the vehicle lacked standing. (*Id.* at pp. 962, 963.)

Here, GM demonstrates that Plaintiff Rodney Williams Jr. was not a party to any sale or lease of the Subject Vehicle and he was not listed as a buyer on the RISC. (See UMFs 1, 2, and 4.) GM also maintains that even if Williams were a buyer, his claims fail for the reasons stated below with respect to Plaintiff Cox.

First, Plaintiffs argue GM did not raise this standing issue in its Answer, and as such has waived this argument. Plaintiffs, however, provide case law that affirmative defenses must be raised and do not directly cite a case holding that standing, a jurisdictional issue, must be raised in an answer. While Plaintiffs cite *Rubinstein v. Fakheri* (2020) 49 Cal.App.5th 797 (*Rubinstein*), they overstate its holding. Instead, that court held “But the issue is one of capacity to sue, rather than standing or jurisdiction. The defense of lack of capacity is waived if not asserted at the earliest opportunity.” (*Id.* at p. 802.) In *Rubinstein*, it was merely noted the trial court had discretion to find the standing defense waived. (*Ibid.*) Although GM does not address this argument in Reply, lack of standing constitutes a jurisdictional defect and therefore may be raised at any time, even for the first time on appeal. (See e.g., *Qualified Patients Assn. v. City of Anaheim* (2010) 187 Cal.App.4th 734, 751.)

Next, Plaintiffs argue that Williams is a buyer because he was the primary driver of the Subject Vehicle, and as the primary user, he was the one injured. Plaintiffs rely on *Patel v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 1007, where the court found a primary user to have standing. “Patel did not lease the vehicle for his own use. Instead, he leased it for a friend, Arjang Fayaz, who was the primary driver. Patel paid the lease payments to MBUSA, and Fayaz reimbursed Patel. Because Patel was the lessee and the party to the express warranty, Patel alone

² Although Plaintiffs “dispute” UMFs 2, 4, and 7, they are not disputed with conflicting evidence but rather present legal arguments they claim conflicts with GM’s interpretation of the law. Plaintiffs did not present any additional facts or evidence.

sued MBUSA. MBUSA deposed Fayaz as a witness. After several days of trial, MBUSA moved for nonsuit on the basis that Patel did not suffer any damages, because Fayaz reimbursed him for the lease payments. The trial court denied MBUSA's motion for nonsuit, but ordered that Fayaz be added to the case as a plaintiff." (*Id.* at p. 1010.) However, *Towns*, supra, 117 Cal.App.5th 596, rejected this exact reading of *Patel*. "The panel in *Patel* was not presented with the standing issue. The panel's comment about when Fayaz could have become a party to the case was made in the context of an observation that the plaintiff had never taken inconsistent positions. (*Patel*, supra, 43 Cal.App.5th at p. 1018, 256 Cal.Rptr.3d 603.) Cases are not authority for propositions not considered or issues not presented by their own particular facts. (*McConnell v. Advantest America, Inc.* (2023) 92 Cal.App.5th 596, 611, 309 Cal.Rptr.3d 526.) *Patel* does not authorize a non-buyer to bring suit under the Act." (*Id.* at p. 968.) Moreover, here, Plaintiffs have not presented any evidence to place a material fact in dispute that Williams was the primary user of the Subject Vehicle. GM did place in evidence facts that Williams was not listed as a buyer on the RISC. Therefore, GM has met its burden on the standing issue. The Court finds that Mr. Williams lacks standing; however, even if Williams did not lack standing, the causes of action fail for the reasons stated below.

*The First through Third Causes of Action: Breach of Express Warranties.*³ The Song Beverly Consumer Warranty Act covers consumer goods. Consumer goods are any new product or part thereof that is bought, used, or leased primarily for personal, family, or household purposes. (Civ. Code, §§ 1791, subd. (a), 1793.22, subd. (e)(2).) Song Beverly only covers new products unless explicitly stated otherwise. (*Leber v. DKD of Davis, Inc.* (2015) 237 Cal.App.4th 402, 407.) A new vehicle means, in addition to the general definition, a "dealer-owned vehicle and 'demonstrator'⁴ or other motor vehicle sold with a manufacturer's new car warranty." (Civ. Code, § 1793.22, subd. (e)(2).) In *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), the California Supreme Court held that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22, subdivision (e)(2)'s definition of "new motor vehicle" unless the new car warranty was issued with the sale." (*Id.* at p. 196.)

GM correctly argues that the Subject Vehicle was not new and not considered a "new vehicle" under the Act where it had more than 50,000 miles on it and Plaintiff was not the original purchaser. Nor did GM issue any new or additional warranties when Plaintiff bought the used Subject Vehicle. (See UMFs 1, 3, 5, and 7.)

Plaintiff concedes the Subject Vehicle was not new but argues that the Supreme Court opinion in *Rodriguez*, supra, 17 Cal.5th 189 was limited to addressing the refund/replacement

³ To establish a breach of the express warranty, it must be established that (1) the plaintiff bought or leased a new motor vehicle from the defendant, (2) the defendant gave the plaintiff an express warranty, (3) the vehicle had a defect that was covered by the warranty and that substantially impaired its use, value, or safety to a reasonable person in the plaintiff's situation, (4) the plaintiff delivered the vehicle to the defendant or its authorized repair facility for repair, (5) the defendant or its repair facility failed to repair the vehicle to match the written warranty after a reasonable number of opportunities to do so, and (6) the defendant did not promptly replace or buy back the vehicle. (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; CACI 3201.)

⁴ A demonstrator is a "vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type." (Civ. Code, § 1793.22, subd. (e)(2).)

remedy under Civil Code section 1793.2, subdivision (d)(2), so it does not affect the causes of action for violation of Civil Code section 1793.2, subdivision (b) and (a)(3), etc. However, the *Rodriguez* Supreme Court was addressing Civil Code section 1793.22, subdivision (e)(2), and, in particular, the definition of a new motor vehicle and the meaning of “other motor vehicle sold with a manufacturer’s new car warranty.” (*Rodriguez, supra*, 17 Cal.5th at pp. 195-96, 198, 206.) The Court held that a vehicle purchased with an unexpired manufacturer’s new car warranty is not a new motor vehicle under Song Beverly. (*Id.* at pp. 196, 198-99.) A vehicle is new under Civil Code section 1793.22, subdivision (e)(2), if a new car warranty is issued with the vehicle when it is purchased. (*Id.* at pp. 196, 198-99, 206.)

Here, no new warranty was issued with the Subject Vehicle when it was sold to Plaintiff. (UMF 7.) Thus, it would not constitute a new vehicle under the Song Beverly “new vehicle” definition. It would further not constitute a new consumer good under Civil Code section 1791, subdivision (a). As the vehicle was used, and the Act only applies to new consumer goods, Plaintiffs cannot maintain these claims under the Act.

In the Opposition, Plaintiff argues that Civil Code section 1795.5, subdivision (a) provides an independent basis for Plaintiff’s claims and “overrides” Civil Code section 1791, subdivision (a)’s “new” goods definition.

“Separate from these provisions concerning new products, the Act includes a distinct section addressing used products. Section 1795.5 says: “Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean ‘new’ goods, the obligation of a distributor or retail seller of used consumer goods in *a sale in which an express warranty is given* shall be the same as that imposed on manufacturers under this chapter,” with certain exceptions. (Italics added.) In other words, “[s]ection 1795.5 provides express warranty protections for used goods only where the entity selling the used product *issues an express warranty at the time of sale.*” (*Rodriguez, supra*, 17 Cal.5th at pp. 200-201.)

This does not rescue Plaintiff’s claims. GM provided evidence that the used vehicle was sold by CarMax, not GM. (UMFs 1, 3.) GM was not a party to this transaction, and CarMax is not a GM authorized dealership. (UMF 4.) With that transaction delivery to the Impala’s original owner(s), GM issued a New Vehicle Limited Warranty (the Warranty) providing bumper-to-bumper coverage for the earlier of 3 years or 36,000 miles and powertrain coverage for the earlier of 5 years or 60,000 miles. (UMF 6.) GM did not issue or provide any new or additional warranty coverage to Plaintiff or the vehicle when Plaintiff bought the Impala used. (UMF 7.)

In the Opposition, Plaintiff maintains GM was still the distributor of the used Subject Vehicle, but again, Plaintiff provides no such evidence and the evidence here is that the Subject Vehicle was bought used by Plaintiff from CarMax, who was not an authorized GM dealership and GM was not involved in the transaction when the Impala was bought used by Plaintiff.

Finally, Plaintiff’s rely on recent district court rulings to rescue its claims, which are not binding precedent. (See *Rubin v. Ross* (2021) 65 Cal.App.5th 153, 163; *People v. Bocanegra* (2023) 90 Cal.App.5th 1236, 1255, fn. 7.) Plaintiff has also failed to show how the facts here are comparable.

The Fourth Cause of Action: Breach of Implied Warranty of Merchantability. In every contract for the sale of a consumer good, a warranty that the good is merchantable or fit for its ordinary purpose exists. (Civ. Code, § 1792; *Isip v. Mercedes-Benz USA, LLC* (2007) 155 Cal.App.4th 19, 26.) The implied warranty applies to the sale of consumer goods. As noted above, a consumer good is any new product or part thereof. (Civ. Code, §§ 1791, subd. (a), 1793.22, subd. (e)(2).) Nevertheless, a distributor or retail seller who issues express warranties

on used consumer goods also provides an implied warranty of merchantability or fitness. (Civ. Code, §1795.5, subds. (a), (c); *Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399.) A manufacturer provides no implied warranty with a sale of a used consumer good unless there is evidence it played a role in the sale of the used vehicle. (*Ruiz Nunez v. FCA US LLC*, *supra*, 61 Cal.App.5th at p. 398; *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340 [“But the assumption baked into section 1795.5 is that the manufacturer and distributor/retailer are distinct entities. Where the manufacturer sells directly to the public, however, it takes on the role of a retailer.”].)

Here, GM shows that the Impala was bought used, GM was not a distributor or retail seller of the used Impala such that it could have breached the implied warranty. (See UMFs 1, 3-7.) Thus, this cause of action fails as a matter of law.

However, Plaintiff claims that *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 renders its fourth cause of action viable where there are latent defects. Plaintiff claims there is evidence of a latent defect, but again, Plaintiff did not submit any evidence in response to GM’s evidence such that this could potentially place a material fact in dispute. As GM has met its burden, Plaintiff’s references to evidence not placed before the court are insufficient.

Ultimately, Plaintiff has not shown there are any material facts in dispute, and GM has met its burden and demonstrated that the four causes of action are not viable as a matter of law. Therefore, the Court grants summary judgment.

RULING

The Court grants Summary Judgment.

Evidence:

1. Declarations of Bryan Jensen and Kyle Roybal.
2. Exhibits A-D.

Dated: June 26, 2026

Judge Nicole Quintana Winter